

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Volha Shauchenka	Team: Squad #03	CCRB Case #: 201600613	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/21/2016 4:10 PM	Location of Incident: Beach Channel Drive and Rockaway Freeway; 101st PCT SH	18 Mo. SOL 7/21/2017	Precinct: 101		
Date/Time CV Reported Thu, 01/21/2016 6:57 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 01/21/2016 6:57 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Mccarthy	03556	949292	101 PCT
2. POM Jolan Lewis	07344	933929	101 PCT
3. SGT Stavros Spanos	04800	943839	101 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Kimberly Maldonado	05572	942022	101 PCT
2. SGT Timothy Wong	3795	947615	101 PCT
3. POM Christophe Perez	12567	955315	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Mccarthy	Abuse: At Beach Channel Drive and Rockaway Freeway in Queens, Police Officer Michael McCarthy stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . POM Jolan Lewis	Abuse: At Beach Channel Drive and Rockaway Freeway in Queens, Police Officer Jolan Lewis stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Exonerated
C . SGT Stavros Spanos	Abuse: At Beach Channel Drive and Rockaway Freeway in Queens, Sergeant Stavros Spanos stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	C . Exonerated
D . POM Jolan Lewis	Abuse: At Beach Channel Drive and Rockaway Freeway in Queens, Police Officer Jolan Lewis searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	D . Substantiated
E . POM Michael Mccarthy	Abuse: At Beach Channel Drive and Rockaway Freeway in Queens, Police Officer Michael McCarthy frisked § 87(2)(b)	E . Substantiated
F . POM Jolan Lewis	Abuse: At Beach Channel Drive and Rockaway Freeway in Queens, Police Officer Jolan Lewis frisked § 87(2)(b)	F . Substantiated

Officer(s)	Allegation	Investigator Recommendation
G . POM Michael Mccarthy	Abuse: At Beach Channel Drive and Rockaway Freeway in Queens, Police Officer Michael McCarthy searched § 87(2)(b)	G . Unsubstantiated
H . POM Jolan Lewis	Abuse: At Beach Channel Drive and Rockaway Freeway in Queens, Police Officer Jolan Lewis searched § 87(2)(b)	H . Unsubstantiated
I . POM Michael Mccarthy	Abuse: At Beach Channel Drive and Rockaway Freeway in Queens, Police Officer Michael McCarthy searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	I . Substantiated
J . POM Michael Mccarthy	Abuse: At Beach Channel Drive and Rockaway Freeway in Queens, Police Officer Michael McCarthy refused to provide his name and/or shield number to § 87(2)(b)	J . Unsubstantiated
K . POM Jolan Lewis	Abuse: At Beach Channel Drive and Rockaway Freeway in Queens, Police Officer Jolan Lewis refused to provide his name and/or shield number to § 87(2)(b)	K . Unsubstantiated
L . SGT Stavros Spanos	Abuse: At Beach Channel Drive and Rockaway Freeway in Queens, Sergeant Stavros Spanos refused to provide his name and/or shield number to § 87(2)(b)	L . Unsubstantiated
M . SGT Stavros Spanos	Abuse: At the 101st Precint stationhouse, Sergeant Stavros Spanos threatened to issue summonses to § 87(2)(b)	M . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed this complaint at the 101st Precinct stationhouse on January 21, 2016, which was referred to the IAB and generated log #16-2451. The complaint was received at the CCRB on the same day.

On January 21, 2016, at approximately 4:10 p.m., § 87(2)(b) was driving his father's vehicle on Beach Channel Drive in Queens with his brother, § 87(2)(b). Due to heavy traffic a few school busses trying to get into the left turning lane blocked his lane. Therefore, § 87(2)(b) merged into the bicycle lane and passed the busses in front of him, merged back into the vehicle lane and proceeded with the traffic since the light had changed to green. Immediately after that, at the merger of Beach Channel Drive and Rockaway Freeway, § 87(2)(b) was stopped by PO Mathew McCarthy, PO Jolan Lewis, and Sgt. Stavros Spanos of the 101st Precinct, who were driving an unmarked police vehicle (**Allegations A, B and C**). PO McCarthy told § 87(2)(b) that he was driving the vehicle as if it was stolen and instructed him to step out. § 87(2)(b) had his hands in his pockets, and PO Lewis allegedly grabbed § 87(2)(b) by his hand while he was still in the vehicle and instructed him to exit the vehicle too (**Allegation D**). After § 87(2)(b) and § 87(2)(b) stepped out, they were frisked by PO McCarthy and PO Lewis, respectively (**Allegations E and F**). § 87(2)(b) and § 87(2)(b) were also allegedly searched by PO McCarthy and PO Lewis, respectively (**Allegations G and H**). Next, PO McCarthy and PO Lewis conducted a search of § 87(2)(b)'s vehicle (**Allegations D and I**). § 87(2)(b) had a conversation with the officers and explained he drove in the bicycle lane because he needed to use the bathroom. The officers instructed § 87(2)(b) to drive more safely and he and his brother were released without any summonses being issued. As PO McCarthy, PO Lewis and Sgt. Spanos headed towards their vehicle, § 87(2)(b) asked all three of them for their names. All the officers turned around, and PO McCarthy stated that was not necessary (**Allegation J, K, L**). On the same day, at approximately 6:00 p.m., § 87(2)(b) and his father, § 87(2)(b) went to the 101st Precinct stationhouse to file a complaint against PO McCarthy, PO Lewis and Sgt. Spanos. While at the stationhouse, § 87(2)(b) spoke to Sgt. Kimberly Maldonado, Sgt. Timothy Wong and PO Christopher Perez, who assisted him in filing the complaint. Sgt. Maldonado allegedly called Sgt. Spanos, who arrived to the waiting area and spoke to § 87(2)(b) and his father. During that conversation, Sgt. Spanos told § 87(2)(b) he should have issued § 87(2)(b) three summonses during the stop (**Allegation M**). § 87(2)(g), § 87(4-b)

There is no video of the incident.

Mediation, Civil and Criminal Histories

- On January 21, 2016, mediation was explained to and rejected by § 87(2)(b). § 87(2)(b) rejected mediation on behalf of his sons on the same day.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- The § 87(2)(b) have not filed a Notice of Claim with the City of New York as of March 22, 2016 in regards to the incident [BR 15].

Civilian and Officer CCRB Histories

- This is the second CCRB complaint filed by § 87(2)(b) and the first filed on behalf of § 87(2)(b) § 87(2)(g).
- PO Michael McCarthy has been a member of the service for five years and has three previous CCRB complaints filed against him containing three allegations, none of which were substantiated. PO McCarthy has one previous refusal to provide name and shield allegation against him in case #201309330 which was unfounded. § 87(2)(g), § 87(4-b)
- PO Jolan Lewis has been a member of the service for 12 years and has five other CCRB complaints filed against him containing 19 allegations. Complaint #201602525 has refusal to provide name and/or shield number and vehicle stop allegations pleaded against him is still being investigated. PO Lewis has frisk and search allegations against him in case that were substantiated in case # 201506616, and formalized training was recommended by the CCRB as a penalty. NYPD has not imposed discipline on PO Lewis yet.
- Sgt. Stavros Spanos has been a member of service for nine years and has four previous CCRB complaints containing nine allegations filed against him, none of which were substantiated. § 87(2)(g), § 87(4-b)

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)

Allegation A – Abuse of Authority: Police Officer Mathew McCarthy stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B – Abuse of Authority: Police Officer Jolan Lewis stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation C– Abuse of Authority: Sergeant Stavros Spanos stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that PO Mathew McCarthy, PO Jolan Lewis, and Sgt. Stavros Spanos stopped the vehicle occupied by § 87(2)(b) and § 87(2)(b) [BR 08, 09, 10]. When interviewed at the CCRB, § 87(2)(b) stated as he was driving on Beach Channel drive towards Mott Avenue in Queens, traffic was heavy, and he stopped at the red traffic signal where school busses, trying to make a left turn, blocked the right lane and prevented him from moving [BR 02]. § 87(2)(b) was unable to pass for some time, and as he needed to use the restroom, he merged into the bicycle lane and drove past the school busses when the light turned

green, thereafter reentering the vehicle lane. He then was stopped by PO McCarthy, PO Lewis, and Sgt. Spanos, who were in an unmarked police vehicle.

§ 87(2)(b)'s account of the beginning of the incident corroborated that of his brother [BR 03].

During his testimony to the CCRB, PO McCarthy stated that he and his partners observed § 87(2)(b) drive on Cornaga Avenue in Queens playing loud music inside the car, which drew the officers' attention to the vehicle [BR 08]. § 87(2)(b) made a right turn passing a red traffic signal on Beach 22nd Street and Cornaga Avenue. PO McCarthy made a U-turn and followed § 87(2)(b) to Beach Channel Drive where the complainant merged into the bicycle lane and passed 10 to 20 cars that were stopped at a red light. Based on the above mentioned observations of reckless driving, PO McCarthy assumed the vehicle might have been stolen.

PO Lewis' description of the circumstances that preceded § 87(2)(b)'s stop and his manner of driving corroborated PO McCarthy's testimony [BR 09].

During his CCRB interview, Sgt. Spanos corroborated the testimonies of PO McCarthy and PO Lewis about § 87(2)(b)'s driving [BR 10]. Sgt. Spanos also added that he believed § 87(2)(b) was attempting to evade the officers for some time before coming to a stop.

According Criminal Procedure Law § 140.50, an officer may stop an individual if he/she believes that the individual has committed, is committing or is about to commit a crime [BR 18].

§ 87(2)(g)

Therefore, it is recommended **Allegations A, B and C** be closed as **exonerated**.

Allegation E – Abuse of Authority: Police Officer Mathew McCarthy frisked § 87(2)(b)

Allegation F – Abuse of Authority: Police Officer Nolan Lewis frisked § 87(2)(b)

When interviewed at the CCRB, § 87(2)(b) stated that after he was stopped, all three officers approached the car, and PO McCarthy requested him to turn off the ignition and hand him the vehicle keys [BR 02]. PO McCarthy also requested § 87(2)(b)'s driver's license and vehicle's registration. § 87(2)(b) complied with PO McCarthy's instructions and inquired why he was being stopped. PO McCarthy replied that § 87(2)(b) drove in the bicycle lane and passed a red traffic signal. PO McCarthy also told § 87(2)(b) he was driving his car as if it was stolen. § 87(2)(b) explained he drove in the bicycle lane due to heavy traffic. PO McCarthy asked § 87(2)(b) who the vehicle belonged to, and § 87(2)(b) replied it belonged to his father. PO McCarthy asked § 87(2)(b) to step out of the car and put his hands on top of the vehicle. PO McCarthy patted § 87(2)(b)'s sweater, feeling a wallet there, and pants. § 87(2)(b) stated he was wearing loose pants, a hooded sweater and a jacket that day.

§ 87(2)(b) stated that after he and his brother were stopped, § 87(2)(b) put his hands inside his pockets because it was cold as they opened the windows upon being stopped [BR 02]. PO Lewis approached § 87(2)(b) on the passenger side and asked him whether he had any weapons on him and why he had his hands in his pockets. PO Lewis instructed § 87(2)(b) to take his hands out of his pockets, and § 87(2)(b)

complied. PO Lewis asked § 87(2)(b) to step out of the vehicle, and put his hands on top of the car, which § 87(2)(b) did. § 87(2)(b) did not specifically observe what PO Lewis did to his brother, but based on the officer's motions, § 87(2)(b) believed his brother was frisked too. § 87(2)(g)

§ 87(2)(b) did not make any frisk allegations against PO McCarthy in his written statement on the CCRB complaint form [NYPD 10].

§ 87(2)(b) confirmed he had his right hand inside his pocket and PO Lewis asked him whether he had any weapons [BR 03]. After he and his brother were instructed to exit the vehicle, § 87(2)(b) did not observe his brother being frisked since he was on the other side of the car. However, PO McCarthy's motions led § 87(2)(b) to believe his brother was patted down. As for § 87(2)(b) he faced the car while PO Lewis patted his arms, legs and ankles.

PO McCarthy stated that after § 87(2)(b) was stopped, he approached the driver's side and inquired why § 87(2)(b) was driving in such a manner [BR 08]. In response, § 87(2)(b) inquired why he was being stopped in an agitated manner. § 87(2)(b) was shaking his legs and stated he needed to use the bathroom, which made PO McCarthy nervous. PO McCarthy observed a rectangular bulge in § 87(2)(b)'s sweatshirt pouch pocket in the waist area. PO McCarthy could not estimate the dimensions of the bulge, but noted it was thicker than a cell phone. PO McCarthy believed the bulge might have been a weapon based on its size, and stated it could have been a Taser. PO McCarthy asked § 87(2)(b) to exit the vehicle, and he complied. PO McCarthy felt the bulge and asked § 87(2)(b) whether there was a wallet in his sweater. § 87(2)(b) confirmed it was his wallet, therefore, PO McCarthy did not enter any pockets on § 87(2)(b) or remove any items from them. PO McCarthy denied patting any other areas on § 87(2)(b).

PO Lewis explained that after he and his partners stopped § 87(2)(b) he observed § 87(2)(b) look back at the officers and attempt to place an object between his seat and the center console. PO Lewis ran to the passenger side and yelled, "Police." § 87(2)(b) did not have his hands in his pockets, was not moving and immediately put his hands up. PO Lewis asked what § 87(2)(b) was doing, and he replied that he was putting a bag of chips away. PO Lewis instructed § 87(2)(b) to exit the vehicle, and he complied and stood facing PO Lewis. PO Lewis asked § 87(2)(b) whether he had any weapons on him, and § 87(2)(b) stated he did not. PO Lewis explained that § 87(2)(b)'s driving lead him to believe that § 87(2)(b) might have been putting away a weapon. PO Lewis asked § 87(2)(b) whether he had anything on him, and § 87(2)(b) replied, "No, you can check." PO Lewis patted § 87(2)(b) in the waistband area and his side pants pockets. PO Lewis indicated § 87(2)(b) did not have any bulges on him at that time and nothing on his clothing indicated he might have been concealing a weapon. After § 87(2)(b) was stopped, PO Lewis immediately approached the passenger side and interacted with § 87(2)(b) therefore he did not observe § 87(2)(b)'s demeanor at that point. PO Lewis did not see whether PO McCarthy patted § 87(2)(b). PO Lewis did not recall § 87(2)(b) saying he needed to use the bathroom and described his demeanor after he exited the vehicle as calm.

Sgt. Spanos stated that after PO McCarthy asked § 87(2)(b) to step out, he refused for 10 to 15 seconds, stating he needed to use the bathroom and did not pass any red

lights [BR 10]. Sgt. Spanos described § 87(2)(b) as rude and uncooperative. Eventually, § 87(2)(b) exited the vehicle and PO McCarthy felt his right pants pocket because he had a round or rectangular bulge there. The shape of the bulge led Sgt. Spanos to believe § 87(2)(b) might have had a weapon on him and he explained a number of weapons could be of a round or rectangular shape. Sgt. Spanos did not believe PO McCarthy frisked other areas on § 87(2)(b)'s body. Sgt. Spanos did not observe PO Lewis frisk § 87(2)(b) as his attention was focused on PO McCarthy and the driver.

A stop, question and frisk report was prepared for § 87(2)(b) by PO McCarthy [NYPD 07]. In the section asking whether force was used and what type of force was used, PO McCarthy marked a box "Hands on Suspect". PO McCarthy explained he checked that box since he patted § 87(2)(b) by physically putting his hands on him. PO McCarthy noted that in the section that explains the reason for using force, he checked boxes "Defense of Self" and "Suspect Flight" by mistake since no actual force was used against § 87(2)(b). PO McCarthy also marked that he frisked § 87(2)(b) due to inappropriate attire, furtive movements, actions indicative of engaging in violent crimes and a suspicious bulge. PO McCarthy explained that the fact that § 87(2)(b) drove past the red light, was shaking his legs and was constantly moving combined with the fact that he drove in the bicycle lane led him to believe § 87(2)(b) might have been engaged in violent crimes. § 87(2)(b)'s demeanor is described as agitated in the report, and his statement that he has to go to the bathroom is also noted. Additionally, such circumstances as high crime area and § 87(2)(b)'s erratic driving were additional circumstances that preceded the stop and the frisk, according to the report.

When being shown the UF250 report, Sgt. Spanos stated PO McCarthy marked the box "Hands on Suspect" as he put his hands on § 87(2)(b) when patting him [BR 10] [NYPD 07]. Sgt. Spanos explained that in the section explaining the use of force, PO McCarthy marked boxes "Suspect Flight" and "Defense of Self" since the officers did not know the reason for § 87(2)(b)'s erratic driving. Sgt. Spanos added that based on his experience, when an individual drives in a manner as § 87(2)(b) was driving, a crime might have been or was about to be committed.

According to P.G. 212-11, an officer may frisk an individual if he/she fears for his/her own safety or safety of others [BR 16]. An officer may frisk an individual if he/she fears for his/her own safety or safety of others or has reasonable suspicion to believe an individual is carrying a weapon or has committed, is committing or is about to commit a violent crime. People v. Mack, 1970, NY Court of App. [BR 17]. According to New York Penal Law §70.02, grand larceny auto is not considered a violent offence [BR 18]. An unidentifiable bulge that is readily susceptible of as innocent as well as guilty explanation by itself is not sufficient to justify a frisk an individual. An individual must display other traits such as furtive movements or making threatening gestures in order to raise the level of suspicion that would allow an officer to frisk the person. People v. Harris, Nov. 2014, Sup. Court, App. Div., No 2012-07692 [BR 19]. During a car stop, an officer may frisk a passenger if he/she displays furtive movements and attempts to place something under the seat only in conjunction with other factors that may elevate the officer's level of suspicion, such as violent or noncompliant behavior of the driver, for example. People v. Feldman, Feb. 2014, NY Sup. Court, App. Div., No. 11561, 1177/10 [BR 20]. Similarly, an officer may frisk a passenger when conducting a vehicle stop when such factors that lead the officer believe an individual may be armed and dangerous are present, for example, a

passenger making furtive movements and denying wearing an apparent bulletproof vest. People v. Batista, 1996, NY Court of App., No. 189 [BR 21].

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended **Allegations E and F** be closed as **substantiated**.

Allegation G - Abuse of Authority: Police Officer Mathew McCarthy searched § 87(2)(b)

Allegation H – Abuse of Authority: Police Officer Jolan Lewis searched § 87(2)(b)

In his CCRB interview, § 87(2)(b) alleged that after PO McCarthy frisked him the officer went into his pants pockets [BR 02]. However, § 87(2)(b) explained he was wearing loose pants and if someone was patting him, the person's hands might have easily slid into his pockets. § 87(2)(b) did not see whether PO Lewis put his hands inside his brother's pockets. § 87(2)(g)

§ 87(2)(b) stated that after PO Lewis patted him, the officer went into his jacket pockets and removed a number two pencil from there [BR 03]. § 87(2)(b) was wearing his school uniform that day, namely a light shirt and light pants, and a winter jacket. § 87(2)(b) did not see what PO McCarthy did to his brother after he was instructed to step out of the vehicle, but assumed PO McCarthy searched § 87(2)(b) based on the officer's movements.

PO McCarthy denied going into § 87(2)(b)'s pockets or removing any items from them [BR 08]. PO McCarthy did not observe what PO Lewis was doing to § 87(2)(b) on the other side of the vehicle.

PO Lewis stated he did not go into § 87(2)(b)'s pockets nor did he remove any items from them [BR 09]. PO Lewis did not see his partner search § 87(2)(b).

In his interview to the CCRB, Sgt. Spanos noted that after the occupants of the vehicle stepped out and were patted, PO McCarthy removed an item or items he could not recall from § 87(2)(b)'s pocket [BR 10]. According to Sgt. Spanos, PO McCarthy later informed the sergeant that he removed a wallet and/or phone from § 87(2)(b)'s pocket. Sgt. Spanos did not observe PO Lewis enter § 87(2)(b)'s pockets or remove any items from them.

According to the stop, question and frisk report prepared by PO McCarthy, he did not search § 87(2)(b) [NYPD 07].

§ 87(2)(g)
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§ 87(2)(g) it is recommended that
Allegations G and H be closed as unsubstantiated.

Allegation D - Abuse of Authority: Police Officer Nolan Lewis searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation I – Abuse of Authority: Police Officer Mathew McCarthy searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

When interviewed at the CCRB, § 87(2)(b) stated after their vehicle was stopped, PO Lewis approached his brother and reached inside the car to put his hands on § 87(2)(b)'s jacket [BR 02]. Additionally, PO McCarthy requested § 87(2)(b) to hand him the vehicle's keys, which he did. After being removed from the vehicle and frisked, § 87(2)(b) and his brother were instructed to step towards the back of the car facing away. § 87(2)(b) assumed that command was given to them so that officers could conduct a search, and informed the officers he did not consent to that. § 87(2)(b) and § 87(2)(b) complied and went to the back of the vehicle, where they had a conversation with Sgt. Spanos. While § 87(2)(b) spoke to Sgt. Spanos in regards to the stop, PO McCarthy and PO Lewis searched his vehicle. § 87(2)(b) did not observe the officers performing the search, but noted that when the interaction with the officers ended and he returned to his vehicle, all the items from the glove compartment and center console, which were closed before he left the vehicle, were removed and tossed around. Additionally, items from the door side pockets and seat pockets were removed. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(b) stated that as PO Lewis approached him and asked him whether he had any weapons, the officer grabbed his right hand while he was still in the vehicle and instructed him to step out [BR 03]. After he was patted down, § 87(2)(b) and his brother were directed to step towards the back of the vehicle and face away from it. While at the back, § 87(2)(b) attempted to turn around to see what PO McCarthy and PO Lewis were doing, but was instructed not to look back. However, during that short period of time when he looked back, § 87(2)(b) observed PO Lewis looking through items inside the vehicle from its right side and PO McCarthy doing the same activity on the left side. Upon his return to the vehicle, § 87(2)(b) noticed that items from the glove compartment, center console, and door pockets were tossed around. The center console was open, although it was closed when § 87(2)(b) and his brother left the vehicle. Additionally, the glove compartment was closed, but the items that were in there initially were on the floor of the vehicle.

PO McCarthy stated that § 87(2)(b) provided his driver's license and insurance, and he observed the registration decal on the windshield of the vehicle [BR 08]. PO McCarthy denied asking § 87(2)(b) to hand him the vehicle keys and stated he did not ask § 87(2)(b) whether the vehicle was stolen. After he patted § 87(2)(b) the officer directed him to step aside so that he could check whether the vehicle keys were in the ignition [BR 08]. PO McCarthy opened the driver door and leaned inside to observe the car keys, which he found in the ignition. PO McCarthy stated he did not open any compartments or other doors, nor did he remove any items from the vehicle compartments. After confirming the car keys were in place, PO McCarthy concluded the vehicle was not stolen. PO McCarthy did not know whether PO Lewis looked inside the vehicle as well.

PO Lewis stated that before he approached the passenger, he observed § 87(2)(b) place something between the seats and reach towards the center console [BR 09]. When the officer approached § 87(2)(b) he was not moving and put his hands up. PO Lewis denied reaching inside the vehicle while § 87(2)(b) was still there. After he removed and frisked § 87(2)(b) PO Lewis instructed him to step towards the back of the vehicle since he wanted § 87(2)(b) to stay away from the center console. § 87(2)(b) was also instructed to step towards the back of the car. The front passenger door remained open after § 87(2)(b) exited the car, and PO Lewis leaned in inside and looked over the center console and between the seats. PO Lewis observed a bag of chips placed between the seats. PO Lewis did not open any compartments nor did he open any doors or search the door pockets. PO Lewis did not remove any items from the vehicle either. While PO Lewis was at the passenger door, PO McCarthy and Sgt. Spanos were talking to the civilians. PO Lewis approached them at the back of the car, and PO McCarthy went to the driver door which was open and leaned in to check whether the car keys were in the ignition. PO Lewis did not observe PO McCarthy open any compartments in the car. PO Lewis explained he and his partners could check the vehicle in case of an emergency or if they believed there were weapons in it or it was stolen.

Sgt. Spanos noted that as he was standing at the back, he did not observe whether any of the occupants had hands in their pockets, and added that PO Lewis did not lean inside the car after he approached it [BR 10]. Sgt. Spanos confirmed that after the occupants exited the vehicle, PO McCarthy leaned inside the car to check whether it was stolen and looked over the steering wheel area. Sgt. Spanos did not observe PO McCarthy open any compartments inside the vehicle nor did he see PO McCarthy look through the door pockets. Sgt. Spanos did not observe PO McCarthy open any doors or look through seat pockets. Sgt. Spanos did not recall whether PO

Lewis conducted a check of the vehicle and did not observe him lean inside. Sgt. Spanos did not observe PO Lewis open any compartments of the car or remove any items.

Once occupants of the vehicle have been removed and frisked and no additional incident occurred that may endanger an officer, it is generally unlawful for an officer to enter the vehicle without probable cause. However, if information learned during the stop reveals that there is a substantial likelihood that a weapon that poses an actual and specific danger to the officers is in the vehicle, the officers would be justified in engaging in a limited intrusion of the vehicle. People v. Newman, Apr. 2012, NY Sup. Court, App. Div., No. 6770, 6771, 6771, 1402/08, 6773 [BR 22]. In a situation where several civilians in the back seat of a vehicle are making furtive movements, as well as not complying with the officers' instructions, officers would be justified in searching the area where the furtive movements were made. People v. Washington, Jan. 2012, NY Sup. Court, App. Div., No. 3223, 7138/06 [BR 23].

§ 87(2)(g)

§ 87(2)(g) In the light of the above, it is recommended that **Allegations D and I** be closed as **substantiated**.

Allegation J – Abuse of Authority: Police Officer Mathew McCarthy failed to provide his name and/or shield number to § 87(2)(b)

Allegation K – Abuse of Authority: Police Officer Jolan Lewis failed to provide his name and/or shield number to § 87(2)(b)

Allegation L – Abuse of Authority: Sergeant Stavros Spanos failed to provide his name and/or shield number to § 87(2)(b)

In his CCRB testimony, § 87(2)(b) stated after the stop was conducted and PO McCarthy, PO Lewis and Sgt. Spanos headed towards their vehicle, he asked all three officers for their names [BR 02]. All the officers turned around, and PO McCarthy said that was not necessary and wished the civilians to have a good day. Although he provided the same account in his CCRB complaint written statement, § 87(2)(b) noted he asked only PO Lewis and Sgt. Spanos for their names in his phone statement [NYPD 10][BR 01].

§ 87(2)(b) did not hear his brother ask the officers for their names [BR 03]. However, § 87(2)(b) who was present during his younger son's statement, corrected § 87(2)(b)'s testimony and stated his younger son had told him § 87(2)(b) asked the officers for their names after the incident and prior to the CCRB interview [BR 04].

PO McCarthy, PO Lewis and Sgt. Spanos denied being asked for their names during the incident [BR 08, 09, 10].

§ 87(2)(g)

it is, therefore, recommended that **Allegations G, H and I** be closed as **unsubstantiated**.

Allegation M – Abuse of Authority: Sergeant Stavros Spanos threatened to issue summonses to § 87(2)(b)

§ 87(2)(b) noted that after the incident ended, § 87(2)(b) related what had occurred to him and his brother, and § 87(2)(b) insisted they go to the 101st Precinct stationhouse and file a complaint [BR 04]. On January 21, 2016, at approximately 6:00 p.m., § 87(2)(b) and § 87(2)(b) arrived to the 101st Precinct stationhouse. They spoke to Sgt. Maldonado, Sgt. Wong and PO Perez, who assisted § 87(2)(b) in completing and processing his complaint form. According to § 87(2)(b) Sgt. Maldonado called one of the officers who conducted the stop, and the officer, identified by the investigation as Sgt. Spanos, came to the waiting area where he spoke to § 87(2)(b) Sgt. Spanos allegedly asked what § 87(2)(b) was doing there and § 87(2)(b) replied he did not like the way Sgt. Spanos and his partners treated him and his brother. In response, Sgt. Spanos allegedly stated, “I should have given you three tickets.”

Although he did not mention this portion of the incident in his previous statements, in his second interview to the CCRB § 87(2)(b) confirmed that he and his father went to the 101st Precinct stationhouse on the day of the incident [BR 05]. Sgt. Maldonado processed § 87(2)(b)'s complaint and called Sgt. Spanos over the phone. Sgt. Spanos came to the waiting area and asked what the problem was. § 87(2)(b) told Sgt. Spanos he did not like the way he and his partners conducted the stop and Sgt. Spanos replied, “I should have given you those tickets,” and left. § 87(2)(b) assumed that Sgt. Spanos could have issued him the summonses for passing the red light, which he denied doing, or for driving in the bicycle lane.

PO McCarthy and PO Lewis denied having any interaction with § 87(2)(b) at the stationhouse after the incident and were not aware whether Sgt. Spanos did [BR 08, 09]. However, both PO McCarthy and PO Lewis were notified by other officers from their command that § 87(2)(b) came to the stationhouse to file a complaint against them [BR 08, 09]

Sgt. Spanos stated he did not have any conversation with § 87(2)(b) at the stationhouse and denied threatening him with summonses [BR 10]. Sgt. Spanos noted he would be leaving the stationhouse at the time § 87(2)(b) and § 87(2)(b) were there.

When interviewed at the CCRB, Sgt. Maldonado stated when § 87(2)(b) and his father came to the 101st Precinct stationhouse, she processed § 87(2)(b)'s complaint, made a relevant Command Log entry and notified IAB [BR 11]. Sgt. Maldonado did not recall what officers were nearby § 87(2)(b) and his father nor did she recall the civilians talking to Sgt. Spanos or PO McCarthy. Sgt. Maldonado stated she was not familiar with PO Lewis.

During his CCRB interview, Sgt. Wong confirmed he was at the desk when § 87(2)(b) and § 87(2)(b) arrived to the stationhouse [BR 12]. Sgt. Wong did not recall whether § 87(2)(b) and his father spoke to any other officers nor did he recall whether any

During his CCRB statement, PO Perez stated he was at the telephone switchboard when § 87(2)(b) and § 87(2)(b) came to 101st Precinct stationhouse [BR 13]. After § 87(2)(b) related to him that he was stopped by plainclothes officers and wanted to file a complaint, PO Perez provided him with a complaint form and entered it in the system. PO Perez did not recall whether § 87(2)(b) or his father spoke to any other officers or sergeants. PO Perez did not hear any plainclothes officers threatening to issue summonses to § 87(2)(b).

§ 87(2)(g)

§ 87(2)(g), § 87(4-b) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] [REDACTED]

[REDACTED]

[illegible]

Investigator: _____

Signature _____ Print _____ Date _____

Squad Leader: _____

Title/Signature _____ Print _____ Date _____

Reviewer:

Title/Signature

Print

Date